Charter Amendment Measure E

Impartial Analysis by County Counsel

PROPOSED COUNTY CHARTER AMENDMENT TO LIMIT EMINENT DOMAIN AND PROTECT PROPERTY RIGHTS
MEASURE E

Measure E on the Ballot would amend the Charter of the County of Shasta to prohibit the use of eminent domain by the County to acquire property from a private Owner, without their consent, for the purpose of conveying the property to another private party. As used in the Ordinance, "Owner" means the owner(s) of the fee title interest in the property to be acquired.

The power and legal process of eminent domain (sometimes called "condemnation") allows governmental entities, such as the County, to acquire property owned by other persons, including private parties, for public use upon payment of "just compensation," which is normally the fair market value of the property. The U.S. Supreme Court decision of Kelo v. City of New London (2005) 125 S. Ct. 2655 confirmed that governmental entities, such as the County, may use the power of eminent domain for the purpose of economic development whereby property is acquired from a private owner and then transferred to a different private owner that the governmental entity has determined will put the property to a more economically beneficial use. If approved by a majority of the qualified electors, the Ordinance would provide that the County Board of Supervisors cannot authorize the County to use its power of eminent domain for the purpose of acquiring property from any private Owner thereof, without the Owner's consent, when the County's purpose in acquiring the property is to convey the property to another private party.

If the voters reject this measure, the County Board of Supervisors will keep its current ability to authorize the County to use its power of eminent domain for the purpose of acquiring property from any private owner thereof without the owner's consent, even though the County's purpose in acquiring the property is to convey the property to some other private party which the County Board of Supervisors has determined will put the property to a more economically beneficial use.

/s/ Renee Belcastro, Deputy County Counsel

The above statement is an impartial analysis of Ordinance or Measure E. If you desire a copy of the ordinance or measure, please call the elections official 's office at (530-225-5730) and a copy will be mailed at no cost to you.

You may also access the full text of the measure on the county website at the following web-site address:(https://elections.shastacounty .gov).